

Accordingly, any judgment must credit the undisputed \$19,000, leading to a total due of \$54,000 (\$73,000 settlement minus \$19,000 paid), along with lawful post-judgment interest and any \$100 late fees authorized by Paragraph C of the Settlement Agreement.

Request for Attorney's Fees

Plaintiff seeks \$18,000 in attorney's fees as the prevailing party under the Settlement Agreement. However, Defendants argue that both Paragraph D and Judgment paragraph 1 provide for fees "according to proof" at a "prove-up hearing," and contend that Plaintiff has failed to provide any supporting documentation, such as billing records, a fee declaration, or a lodestar analysis, to justify the request. (Settlement Agreement ¶ D.) As the Settlement Agreement explicitly contemplates a prove-up hearing with evidence presented "according to proof," and in light of Plaintiff's lack of evidentiary support for the requested amount, the Court denied the request for attorney's fees without prejudice, allowing Plaintiff to pursue a properly noticed prove-up process.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400078	ALMAZAN VS W.A RASIC CONSTRUCTION COMPANY, INC.	DEMURRER ON CROSS-COMPLAINT OF W.A RASIC CONSTRUCTION COMPANY, INC. BY QUANTA SERVICES, INC., UTILITY LINE MANAGEMENT SERVICES, INC., QUANTA UTILITY ENGINEERING SERVICES.

Tentative Ruling: Hearing continued to 9/21/26.

Cross Defendants wholly failed to submit a declaration evidencing meet and confer efforts as required by Code of Civil Procedure section 430.41. Cross Defendants are ordered to meet and confer in person, via phone or videoconference with Cross Complainant for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Cross Defendants shall identify the specific causes of action that they believe are subject to demurrer and identify with legal support the basis of the deficiencies. Cross Complainant shall provide legal support for her position that the pleading is legally sufficient or, in the alternative, how the Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Cross Defendants shall 10 days before the continued hearing date set do one of the following: (1) vacate the hearing on the demurrer and motion to strike, and file an Answer; (2) file with the Court a declaration stating the parties have agreed that Cross Complainant will file an amended complaint before the next hearing date; or (3) file with the court a declaration stating the means (in person, phone, or videoconference) by which the parties met and conferred and identify the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve. (Code Civ. Proc., § 430.41.)

Before filing a demurrer, the moving party shall meet and confer, at least 5 days before a responsive pleading is due, in person, by telephone, or video conference, with the party

who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§410.41, subd. (a), 435, subds. (a)(1)-(2).) The moving party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (Code Civ. Proc., § 430.41, subd. (a)(3).)

Here, Cross Defendants failed to submit a declaration evidencing meet and confer efforts. The Court admonishes counsel for failure to comply with Code of Civil Procedure that expressly requires a meet and confer.

Cross Defendants' Request for Judicial Notice (RJN)

The Court denies RJN of Exhibit 1 (Sacramento County Citizen Access Fictitious Business Search). Materials prepared by private parties that are on file with governmental agencies are not official records of which judicial notice may be taken. (*People v. Thacker* (1985) 175 Cal.App.3d 594, 598-599; *Stevens v. Superior Court* 91999) 75 Cal.App.4th 594, 608.) If a document was filed by the governmental agency itself, then Evidence Code section 452, subdivision (c), applies and judicial notice can then be granted.

As to Exhibit 2, it appears to be the Compromise and Release form, in other words the settlement contract, paying out the injured employee, Plaintiff, for case number ADJ17384473. The listed employer is "Quanta International Utility Line Management." The date of injury is December 9, 2022, which is the same date alleged as Plaintiff's injury date in the Complaint and Cross Complaints. Cross Defendants contend that the separately named entities Quanta Utility Engineering Services ("QUES") and Utility Line Management Services, Inc. ("ULMS") are the fictitious business names of PAR Western Line Contractors, LLC ("PAR"), which is Plaintiff's employer.

In opposition, WARC argues the documents do not establish that PAR registered the names QUES and ULMS. WARC argues Exhibit 2 does not identify the listed employer as PAR or any of the entities named in WARC's Cross Complaint.

In reply, Cross Defendants filed a supplemental RJN asking for judicial notice of Exhibit 3 to clear this defect. Exhibit 3 is an Order from the Workers Compensation Judge amending the order approving the Compromise and Release that is Exhibit 2.

"The general rule of motion practice...is that new evidence is not permitted with reply papers." (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) However, a trial court is "vested with a sound discretion as to the permissible scope of evidence offered in rebuttal." (*Tesoro del Valle Master Homeowners Assn. v. Griffin* (2011) 200 Cal.App.4th 619, 641.) Under Evidence Code section 210, relevant evidence is evidence that tends to prove or disprove any disputed fact that is of consequence to the determination of the action. Because Plaintiff's employer is disputed, it is proper to consider the evidence submitted with the reply. Indeed, it would be appropriate for the Court to grant RJN as to Exhibits 2 and 3, with Exhibit 3 being foundation for Exhibit 2, under Evidence Code section 452, subdivisions (c) and (d). However, the Court continues the hearing to afford WARC the opportunity to respond to the new evidence before ruling on the merits.